

Bihar Rice & Paddy Procurement (Levy) Order, 2009

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State of Bihar - Act

Bihar Rice & Paddy Procurement (Levy) Order, 2009

BIHAR

India

Bihar Rice & Paddy Procurement (Levy) Order, 2009

Rule BIHAR-RICE-PADDY-PROCUREMENT-LEVY-ORDER-2009 of 2009

Published on 26 November 2009

Commenced on 26 November 2009

[This is the version of this document from 26 November 2009.]

[Note: The original publication document is not available and this content could not be verified.]

Bihar Rice & Paddy Procurement (Levy) Order, 2009

Published vide Notification No. G.S.R. 7, dated 26th November, 2009, published in Bihar Gazette (Extra-ordinary) dated 7th December, 2009

G.S.R. 7, dated the 7th December 2009. - Whereas, the Governor of Bihar is satisfied that it is necessary and expedient for him to issue an order for maintaining the supplies of rice and for securing its equitable distribution and availability at Fair Price.

Therefore, in exercise of the power conferred by Section 3 of the Essential Commodities Act, 1955 (Act, 10 of 1955) read with the Government of India, Ministry of Consumer Affairs, Food and Public Distribution, Department of Food & Public Distribution Notification No. GSR 490(E) dated 16th June, 2003 with the prior concurrence of Government of India as mentioned in the said Notification, the Governor of Bihar is pleased to introduce the following order :-

1.

Short title, extent and commencement.

(1)

This Order may be called the Bihar Rice & Paddy Procurement (Levy) Order, 2009.

(2)

It shall extend to the whole of the State of Bihar.

(3)

It shall come into force with date of issuance of this Notification to 31st August, 2010 for the Kharif Marketing Season 2009-10.

2.

Definitions.

- In this Order unless the context otherwise require :-

(a)

"Collector" means in relation to a district, the District Magistrate and includes such other officers of the Government posted in the district as may be authorised by the State Government to perform all or any of the functions of the Collector under this order.

(b)

"Custom Mill" means such rice mill where paddy has been changed into rice on payment of milling of paddy charges in cash or in kinds.

(c)

"Enforcement Officer" means and includes the Deputy Director (Food), District Magistrate, Additional District Magistrate (Supply), Additional Collector, Special Officer In-charge Rationing, Deputy Rationing Officer, Assistant Rationing Officer, Sub-Divisional Magistrate, District Supply Officer, Assistant District Supply Officer, Block Supply Officer, Marketing Officer, Supply Inspector, Block Development Officer, Circle Officer, Food Commissioner/Secretary, Additional/Joint/Deputy/Under Secretary, Food and Consumer Protection Department, Secretary to Food Commissioner, Deputy Inspector General of Police (Food), Superintendent of Police (Food), Deputy Superintendent of Police (Food) and any Police Officer not below the rank of Inspector.

(d)

"Food Corporation" means Food Corporation of India established under Section 3 of the Food Corporation Act, 1964 (Act 37 of 1964).

(e)

"Government" means the State Government of Bihar.

(f)

"Miller" means the owner of rice mill engaged in milling of paddy and production of rice.

(g)

"Paddy" means paddy of the varieties described in Schedule-I.

(h)

"Rice" means rice of the the varieties described in Schedule-II.

(i)

"Procurement Price" means the minimum support price fixed by the Government of India for different varieties of paddy and commodity of rice as in Schedules-III & IV respectively.

(j)

"Rice Mill" means the plant machinery with which and the premises including the precincts thereof in which or any part of which where rice milling operation is carried on.

(k)

"Schedule" means a schedule appended to this Order.

(l)

"Uniform Specification" Means conformation to the specifications as per Schedules-I & II for paddy & rice respectively.

(m)

"State Agent" means Food Corporation of India.

3.

Levy on rice produced in a Rice Mill.

(a)

Every miller shall sell 50% of the quantity of rice produced or manufactured out of paddy received by him/her on Minimum Support Price to Food Corporation of India within the prescribed limit as per Schedule-IV in any rice mill from the date of commencement of this Order.

(b)

Every small Hollers & Sellers may sell 100 quintals rice to Food Corporation of India out of paddy purchased on Minimum Support Price from Farmers during the Kharif Marketing Season 2009-2010.

(c)

Each variety of rice conforming to specification purchased or otherwise acquired milled by him for the purpose of sale from persons other than a miller.

4.

Levy rice in conformity with uniform specifications.

- The rice required to be sold to the State Agent shall be in conformity with the uniform specifications of rice as per Schedule-II of this Order.

(b)

In case any stock of rice offered for sale by the millers does not conform to the uniform specifications as laid down in Schedule-II it shall be reconditioned or rectified by the miller at his/her own cost and risk so as to bring it in conformity with uniform specifications.

5.

Delivery of Levy Rice.

(a)

The levy rice required to be sold to the State Agent (FCI) by millers as levy will deliver in 50 kgs. bags.

(b)

Miller not to remove or sell stock of rice/paddy without delivering or setting apart levy. - Miller shall not remove or sell or transport rice/paddy from one place to another unless he/she has delivered or set apart the quantity of rice/paddy demanded or payable on the basis of his stock.

(c)

Orders/directions issued by State Government, from time to time in the interest of farmers shall be applicable to levy rice procurement.

6.

Payment of levy rice to the millers.

- State Purchasing Agency (FCI) shall pay the cost including all costs of levy rice to millers of rice within 5 days.

7.

Duty to comply with order or direction.

- Every miller shall perform his duties issued under this Order.

8.

Maintenance of Register & Report.

- (i) Every miller shall maintain a register indicating the quantity of paddy purchased from farmers on Minimum Support Price, milled and rice delivered under levy on each day.

(ii)

The miller shall furnish report return to concerned District Magistrate.

9.

Periodical verification of the stock with the miller.

- The Collector/D.M. and Officers of the Food and Consumer Protection Department, Government of Bihar and as may be authorised by the Collector/D.M. or Food and Consumer Protection Department not below the rank of Inspector verify the stock of rice in the rice mill.

10.

Power of entry, search, seizure etc.

(a)

The Collector/District Magistrate and Officers of Food Supply & Commerce Department and as may be authorised by the Collector/D.M. or Food Supply and Commerce Department not below the rank of Inspector or any Police Officer not

below the rank of a Sub-Inspector may with a view to securing compliance with this Order or to satisfy Enforcement Officer that this Order has been complied with the provisions of the Code of Criminal Procedure, 1973 (Act 2 of 1973) relating to search and seizure shall so far as may be apply to searches and seizures under this clause.

(b)

Seizure of stock in case of non-delivery of rice/paddy under levy. - Where the Collector or an Officer authorised by the Collector or the State Government is satisfied that any miller has refused or is evading to deliver to the State Government or the State Agent at his business premises the quantity of rice/paddy due as levy under this Order it shall be lawful for him to order seizure of the entire quantity of stock found within his/her premises.

11.

The Collectors of the Districts will be personally responsible for procurement of levy rice from the Millers and shall ensure that the payment of Minimum Support Price made to the farmers and they shall take such action by which recycling of subsidised rice may be prevented.

12.

Power to exempt.

(a)

The State Government may in public interest exempt any area from levy or reduce quantum of levy with the prior concurrence of the Central Government.

(b)

The State Government may in public interest exempt any class or person from levy or other provisions of this Order with the prior concurrence of the Central Government.

13.

Nothing in this Order shall apply to.

- (i) Any other State Government or the Central Government, and

(ii)

The Food Corporation of India.

14.

Penalties.

- Whoever contravenes the any provisions which is under paras 3, 5, 7 & 8 of this Order shall be punishable under Section 7 of the Essential Commodities Act, 1955 (Act 10 of 1955).

15.

Repeal of the previous Order.

- The Bihar Rice and Paddy Procurement (Levy) Order, 2008 is hereby repealed.

I

Uniform Specification of all varieties of paddy (Marketing Season 2009-2010)

Paddy shall be in sound merchantable condition, dry clean, wholesome of good food value, uniform in colour and size of grains and free from moulds, weevils, obnoxious smell, argemone mexicana, lathyrus sativus (Khesari) and admixture of deleterious substances:

Paddy will be classified into Grade "A" and common groups.

of specification

Sl. No.

Refractions

Maximum Limits (%)

1.

Foreign matter

(a) Inorganic

1.0

(b) Organic

1.0

2.

Damaged, discoloured, sprouted and weevilled grains

4.0

3.
Immature, shrunken and shrivelled grains

3.0

4.
Admixture of lower class

7.0

5.
Moisture content

17.0

Note. - 1. The definitions of the above refractions and method of analysis are to be followed as per BIS "Method of analysis for foodgrains" IS : 4333 (Part-I): J-1996, IS : 4333 (Part-II) : 2002 and "Terminology for foodgrains" IS : 2813-1995, as amended from time to time.

2. The method of sampling is to be followed as per BIS method for sampling of Cereals and Pulses IS:14818-2000 as amended from time to time.

3. Within the overall limit of 1.0% for organic foreign matter, poisonous seeds shall not exceed 0.5% of which Dhatura and Akra seeds (Vicia species) not to exceed 0.025% and 0.2% respectively.

II
Uniform specification for Grade 'A' & common rice (Marketing Season 2009-2010)

Rice shall be in sound merchantable condition, sweet, dry, clean, wholesome of good food value, uniform in colour and size of grains and free from moulds, weevils, obnoxious smell, admixture of unwholesome poisonous substances, argemone mexicana and lathyrus sativus (Khesari) in any form, or colouring agents and all impurities except to the extent in the schedule below. It shall also conform to PFA standards:

of Specification

Sl. No.

Refractions

Maximum Grade 'A'

Limit (%) Common

1.

Broken*

Raw

25.0

25.0

Parboiled

16.0

16.0

2.

Foreign Matter**

Raw/Parboiled

0.5

0.5

3.

Damaged #/Slightly Damaged Grains

Raw

3.0

3.0

Parboiled

4.0

4.0

4.

Discoloured Grains

Raw

3.0

3.0

Parboiled

5.0

5.0

5.

Chalky Grains

Raw

5.0

5.0

6.

Red Grains

Raw/Parboiled

3.0

3.0

7.

Admixture of lower class

Raw/Parboiled

6.0

8.

Dehusked Grains

Raw/Parboiled

12.0

12.0

9.

Moisture content @

Raw/Parboiled

14.0

14.0

* Including 1% small brokens.

** Not more than 0.25% by weight shall be mineral matter and not more than 0.10. by weight shall be impurities of animal origin.

@ Rice (both raw and parboiled) can be procured with moisture content upto a - maximum limit of 15% with value cut. There will be no value cut up to 14%. Between 14% to 15% moisture, value cut will be applicable at the rate of full value.

Including pin point damaged grains.

Notes applicable to the specification of Grade 'A' and common varieties of rice

1. The definition of the above refractions and method of analysis are to be followed as given in Bureau of Indian Standard "Method of analysis for Foodgrains" Nos. IS: 4333 (Part-I): 1996 and IS : 4333 (Part-II): 2002 "Terminology for Foodgrains" IS: 2813-1995 as amended from time to time. Dehusked grains are rice kernels whole or broken which have more than $\frac{1}{4}$ of the surface area of the kernel covered with the bran and determined as follows. -

Analysis Procedure

Take 5 grams of rice (sound head rice and brokens) in a petri dish (80 x 70 MM). Dip the grains in about 20 ml. of Methylene Blue solution (0.05% by weight in distilled water) and allow to stand for about one minute. Decant the Methylene Blue solution. Give a swirl wash with about 20 ml. of dilute hydrochloric acid (5% solution by volume in distilled water). Give a swirl wash with water and pour about 20 ml. of Metanil Yellow solution (0.05% by weight in distilled water) on the blue stained grains and allow to stand for about one minute. Decant the effluent and wash within fresh water twice. Keep the stained grains under fresh water and count the dehusked grains. Count the total number of grains in 5 grams of sample under analysis. Three brokens are counted as one whole grain.

Calculations:

Percentage of Dehusked grains = $\frac{N}{W} \times 100$

Where N = Number of dehusked grains in 5 grams of sample

W = Total grains in 5 grams of sample.

2. The method of sampling is to be followed as given in Bureau of Indian Standard "Method of Sampling of Cereals and Pulses" No. IS : 14818-2000 as amended from time to time.

3. Broken less than 1/4 th of the size of full kernels will be treated as organic foreign matter. For determination of the size of the broken, average length of the principal class of rice should be taken into account.

4. Inorganic foreign matter shall not exceed 0.25% in any lot, if it is more, the stocks should be cleaned and brought within the limit. Kernels or pieces of kernels having mud sticking on surface of rice, shall be treated as Inorganic foreign matter.

5. In case of rice prepared by pressure parboiling technique, it will be ensured that correct process of parboiling is adopted i.e. pressure applied, the time for which pressure is applied, proper gelatinisation, aeration and drying before milling are adequate so that the colour and cooking time of parboiled rice are good and free from encrustation of the grains.

III

Procurement Price of Paddy (Kharif Marketing Season 2009-10)

Sl. No.

Variety of Paddy

Rate (Rs. Per quintal)

1.

Common

950/-

2.

Grade "A"

980/-

IV

Rates of Levy Rice (Kharif Marketing Season 2009-10)

Rates of Levy Rice will be as per fixation of the Government of India.

V

(Kharif Marketing Season 2009-10)

Percentage of Extractions of Rice from Paddy

Variety & types of rice

The Entire Area of Bihar

All groups of rice

1. Raw-as per fixation of the Government of Bihar.

2. Parboiled-As per fixation of the Government of Bihar.

(After refraction)

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